

24STCV28548 24STCV28548

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-09-21

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Case Number: 24STCV28548 Hearing Date: September 21, 2026 Dept: 617

Dept.

617

Date:

9-21-26

Case

#: 24STCV28548

Trial

Date: None Set

DEMURRER WITH MOTION TO STRIKE

MOVING

PARTY: Defendant, General Motors LLC

RESPONDING

PARTY: Plaintiff, Oscar Martin

RELIEF

REQUESTED

Demurrer

to First Amended Complaint

SUMMARY

OF ACTION

This

is a lemon law action. Plaintiff Oscar Martin sued Defendant General Motors LLC alleging Defendant failed to promptly replace his 2020 GMC Sierra 1500 or make restitution after it was unable to conform the car to its express warranty after a reasonable number of repair attempts. Plaintiff asserts claims under the Song-Beverly Act and the Magnuson-Moss Warranty Act. Plaintiff additionally alleges that Defendant fraudulently induced the sale of the car by concealing the existence of a transmission defect.

RULING

Demurrer: Overruled.

Defendant

demurs to Plaintiff's First Amended Complaint, arguing that he fails to sufficiently state his claims. It also contends that Plaintiff's fraudulent inducement claim is time-barred. Plaintiff opposes the demurrer, denying his fraud claim is untimely and maintaining the sufficiency of the allegations in support of his claims. Although Plaintiff's opposition was 2-court days late, the Court finds no prejudice to Defendant and considers the opposition in ruling on the demurrer. (Code Civ. Proc., § 1005, subd. (b).) Defendant's demurrer is overruled.

First

through Fifth Causes of Action: Song-Beverly Act and Magnuson-Moss Warranty Act

Defendant

argues that Plaintiff fails to state his Song-Beverly Act claims because Plaintiff alleges that he is a Georgia resident and does not state where he bought his car. Accordingly, Plaintiff's failure to plead his Song-Beverly Act claims also means that his Magnuson-Moss Warranty Act claim fails as well.

The

demurrer to the warranty claims is overruled. While it is true that the Song-Beverly Act only applies to vehicles sold in California (Cummins, Inc. v. Superior Court (2005) 36 Cal.4th 478, 493), the complaint does not indicate that the car was sold outside of the state. The mere allegation that Plaintiff is a Georgia resident is insufficient to infer an out-of-state purchase. Because Plaintiff's Song-Beverly claims do not fail for this reason,

the Magnuson-Moss claim stands. (*Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 833 [“Failure to state a warranty claim under state law necessarily constituted a failure to state a claim under Magnuson-Moss”].) The demurrer to these claims is therefore overruled.

Sixth

Cause of Action: Fraudulent Inducement

Defendant

argues that Plaintiff's fraudulent inducement by concealment claim is barred by the statute of limitations and is not pled with requisite particularity.

Plaintiff's claim is not barred by the statute of limitations. “A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (*Com. for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.) The statute of limitations for fraud is three years. (Code Civ. Proc., § 338, subd. (d).) The cause of action does not accrue “until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (*Ibid.*) Here, the face of the complaint does not affirmatively show that the fraud claim is barred because no facts indicate when Plaintiff discovered, or reasonably should have discovered, Defendant's alleged fraud. The mere fact that “[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period” does not mean that Plaintiff discovered or was put on notice of the alleged fraudulent omission at that time. [FAC ¶ 11.] The fraud claim is thus not barred by the statute of limitations.

Defendant next argues that Plaintiff's fraud claim is not pled with particularity. It contends that Plaintiff does not allege the specific facts Defendant failed to disclose, Defendant's knowledge of those facts, and the advertisements or other materials Defendant could have disclosed them. Defendant further argues that Plaintiff does not plead Defendant's intent to defraud and a transactional relationship giving rise to a duty to disclose.

“The

required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3)

the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) As with all other fraud claims, fraudulent concealment must be pled with specificity “even though the focus of inquiry shifts to the unique elements of the claim.” (Id. at p. 43.) Mere conclusory allegations are insufficient. (Id. at p. 44.)

A

duty to disclose may arise if “the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge).” (Rattagan, supra, 17 Cal.5th at p. 40.) This circumstance presupposes “a preexisting relationship between the parties, such as ‘between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.’” (Id. at pp. 40-41, quoting LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 337.) “If the duty allegedly arose by virtue of the parties’ relationship and defendant’s exclusive knowledge or access to certain facts . . . the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant’s awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant’s omission.” (Id. at pp. 43-44.)

Plaintiff

sufficiently alleges the content of the omitted facts, Defendant’s knowledge of those facts, and Defendant’s intent to defraud him. Plaintiff alleges Defendant failed to disclose the existence of a defect in the 8-speed transmission “that can result in various problems, including, but not limited to hard or harsh shifts, jerking, lurching, hesitation on acceleration, surging and/or inability to control the vehicle’s speed, acceleration, or deceleration.” [FAC ¶ 69.] Defendant presents no authority requiring Plaintiff to allege what manner the disclosure should have been made; it suffices that disclosure should have been made at the time of sale. Plaintiff also alleges that Defendant had knowledge of the defect

“through sources not available to consumers such as Plaintiff, including but not limited to pre-production and post-production testing data; early consumer complaints about the Transmission Defect made directly to Defendant GM and its network of dealers; aggregate warranty data compiled from Defendant GM's network of dealers; testing conducted by Defendant GM in response to these complaints; as well as warranty repair and part replacements data received by Defendant GM from Defendant GM's network of dealers, amongst other sources of internal information.” [Id. ¶ 70.] Finally, Plaintiff pleads Defendant's intent to defraud because Defendant omitted the existence of the defect to induce the sale of the car. [Id. ¶¶ 71-75.] Defendant's particularity arguments in this regard are therefore unavailing.

Plaintiff

further alleges a transactional relationship sufficient to trigger a duty to disclose. He alleges that on or about September 9, 2020, he entered into a “warranty contract” with Defendant regarding his car. [FAC ¶ 6.] Such a contractual relationship may support a duty to disclose on behalf of Defendant. (Rattagan, supra, 17 Cal.5th at pp. 40-41.) Defendant's provision of a warranty to Plaintiff is not a transaction between Defendant and “the public at large” as Defendant provided the warranty directly to Plaintiff. (Id. at p. 41.) Plaintiff has thus alleged a transactional relationship between him and Defendant. Defendant's demurrer to the fraudulent inducement claim is therefore overruled.

Motion

to Strike:

Denied.

Defendant

moves to strike Plaintiff's prayer for punitive damages in sub-paragraph “h” of his prayer for relief. It argues that Plaintiff does not plead a claim supporting the request for punitive damages. Plaintiff does not oppose the motion. The motion to strike is denied because Plaintiff pleads a fraud claim that forms the basis of his punitive damages request.

To

support punitive damages, the plaintiff's complaint “must allege ultimate facts of the defendant's oppression, fraud, or malice.” (Cyrus v. Haveson (1976) 65 Cal.App.3d 306, 316-17; Civ. Code, § 3294, subd. (a).) “Fraud” is “an intentional misrepresentation, deceit, or concealment of a material fact known

to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).)

As

explained in the Court’s ruling on Defendant’s demurrer, Defendant’s challenge to Plaintiff’s fraudulent inducement by concealment claim fails. The fraud cause of action is sufficient to support Plaintiff’s punitive damages claim. (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 610.) Thus, Plaintiff has sufficiently alleged facts to support his punitive damages claim against Defendant and the motion to strike is denied.

Defendant

to answer the operative complaint within 10 days.

Defendant

to give notice.